

HOUSE BILL 321

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 1; Title 2; Title 3; Title 4; Title 5; Title 7; Title 8; Title 9; Title 10; Title 11; Title 12; Title 13; Title 16; Title 20; Title 22; Title 24; Title 31; Title 33; Title 36; Title 38; Title 39; Title 40; Title 43; Title 44; Title 45; Title 47; Title 48; Title 49; Title 50; Title 53; Title 54; Title 55; Title 56; Title 61; Title 62; Title 63; Title 64; Title 65; Title 66; Title 67; Title 68; Title 69 and Title 71, relative to electronic transmissions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 4, is amended by adding the following as a new section:

4-4-119.

Each department, agency, office, commission, institution, or instrumentality of the executive branch must accept the electronic transmission of any document that could have been submitted by fax or facsimile prior to the effective date of this act.

SECTION 2. Tennessee Code Annotated, Section 1-3-105(a), is amended by adding the following as a new subdivision:

() "Electronic transmission":

(A) Means any form of communication not directly involving the physical transmission of paper that creates a record that may be retained, retrieved, and reviewed by a recipient of the communication, and that may be directly reproduced in paper form by such a recipient through an automated process including, but not limited to, electronic mail, electronic communication, and internet communication; and

(B) Does not include communications by fax or facsimile;

SECTION 3. Tennessee Code Annotated, Section 2-5-204(b)(2)(B), is amended by deleting "fax, email" and substituting "electronic transmission".

SECTION 4. Tennessee Code Annotated, Section 10-7-503(a)(7)(A)(i), is amended by deleting "telephone, fax, mail, or email" and substituting "telephone, electronic transmission, or mail".

SECTION 5. Tennessee Code Annotated, Section 16-1-113, is amended by deleting the section and substituting:

(a) It is the intent of the general assembly, in recognition of the common practice and use of electronic transmissions in business and government, to:

(1) Promote a more efficient means of filing documents and overcome expenses and delays entailed in long distance communication; and

(2) Enable courts in this state to implement procedures for the filing of documents by electronic transmission.

(b) Courts in this state may implement procedures for the electronic transmission of documents in accordance with this section and § 16-3-408 and the Tennessee supreme court rules.

SECTION 6. Tennessee Code Annotated, Section 16-3-408, is amended by deleting the section and substituting:

The supreme court is urged to develop court rules and procedures to control the process of courts using electronic transmissions of documents. The court rules and procedures should provide for the following:

(1) The type of document that may be electronically transmitted;

(2) The length of restriction, if any, of a document that may be electronically submitted;

- (3) The type of equipment and paper that must be used by clerks' offices;
- (4) The amount, if any, of fees to be charged for the electronic transmission of documents;
- (5) The payment of regular filing fees of the court;
- (6) The time of filing of an electronically transmitted document;
- (7) Requirements, if any, for filing of original documents or original signatures;
- (8) Requirements, if any, for maintenance of transmittal reports of electronically transmitted documents; and
- (9) Any other rule or procedure the court deems appropriate.

SECTION 7. Tennessee Code Annotated, Section 47-18-2404(b), is amended by deleting "fax,".

SECTION 8. Tennessee Code Annotated, Section 56-5-123(a), is amended by deleting "email or fax" and substituting "electronic transmission".

SECTION 9. Tennessee Code Annotated, Section 63-1-160(e), is amended by deleting "faxed" and substituting "electronically transmitted", and by deleting "fax" and substituting "electronically transmitted".

SECTION 10. Tennessee Code Annotated, Section 67-5-1412(b)(2), is amended by deleting "and fax number" and substituting ", and email".

SECTION 11. Tennessee Code Annotated, Section 71-5-2404(c)(1)(B), is amended by deleting "by fax".

SECTION 12. Tennessee Code Annotated, Section 2-2-113(b), is amended by deleting "The list may be provided by mail, facsimile transmission, or email" and substituting "The list may be provided by mail or electronic transmission".

SECTION 13. Tennessee Code Annotated, Section 2-2-129(a)(1)(A), is amended by deleting ", facsimile transmission or by email" and substituting "or electronic transmission".

SECTION 14. Tennessee Code Annotated, Section 2-6-202(a)(3), is amended by deleting the language:

A voter may make the request or submit an application to vote by mail, facsimile transmission or email with an attached document that includes a scanned signature. For a voter to use a facsimile transmission, an election commission shall have a facsimile machine physically located in the election commission office. The request shall be in writing over the voter's signature.

and substituting:

A voter may make the request or submit an application to vote by mail or electronic transmission with an attached document that includes a scanned signature. The request must be in writing over the voter's signature.

SECTION 15. Tennessee Code Annotated, Section 2-6-202, is amended by deleting subdivision (a)(4).

SECTION 16. Tennessee Code Annotated, Section 2-6-202(b), is amended by deleting "facsimile" and substituting "electronic transmission".

SECTION 17. Tennessee Code Annotated, Section 2-6-206(1), is amended by deleting ", facsimile transmission, or email" and substituting "or electronic transmission".

SECTION 18. Tennessee Code Annotated, Section 2-6-206(3), is amended by deleting "facsimile" and substituting "electronic transmission".

SECTION 19. Tennessee Code Annotated, Section 2-10-105(h)(1), is amended by deleting "facsimile machine,".

SECTION 20. Tennessee Code Annotated, Section 3-1-114, is amended by deleting "electronic mail or facsimile transmission" and substituting "electronic transmission".

SECTION 21. Tennessee Code Annotated, Section 4-3-1405(j)(1), is amended by deleting ", facsimile, or e-mail copy" and substituting "or electronic submission".

SECTION 22. Tennessee Code Annotated, Section 9-4-408(h), is amended by deleting "telephonic facsimile" and substituting "electronic".

SECTION 23. Tennessee Code Annotated, Section 22-2-315(a)(2), is amended by deleting "electronic mail, facsimile," and substituting "electronic transmission,".

SECTION 24. Tennessee Code Annotated, Section 22-2-317(a), is amended by deleting ", facsimile transmission, or email" and substituting "or electronic transmission".

SECTION 25. Tennessee Code Annotated, Section 24-7-116(f), is amended by deleting "facsimile" and substituting "electronic transmission".

SECTION 26. Tennessee Code Annotated, Section 24-7-121(a)(1)(B), is amended by deleting "by telecopier facsimile, or otherwise, an electronic mail copy or copy obtained by way of internet access" and substituting "obtained by electronic transmission".

SECTION 27. Tennessee Code Annotated, Section 24-7-121(b)(1), is amended by deleting "by facsimile or".

SECTION 28. Tennessee Code Annotated, Section 31-4-106(g)(2), is amended by deleting "facsimile or other electronic message" and substituting "electronic transmission".

SECTION 29. Tennessee Code Annotated, Section 33-6-624(f)(4), is amended by deleting ", facsimile or electronic means" and substituting "or electronic transmission".

SECTION 30. Tennessee Code Annotated, Section 36-3-609(b)(1), is amended by deleting "facsimile or other".

SECTION 31. Tennessee Code Annotated, Section 36-5-115(c)(1)(A), is amended by deleting "on a line and facsimile machine provided for such purpose by the department of human services. The machine shall be provided if the clerk's office does not have a facsimile machine as determined by the department through an equipment assessment. Line charges

shall be the responsibility of the department either through use of a toll-free line or pursuant to the cost reimbursement requirements of § 36-5-117." and substituting "by electronic transmission."

SECTION 32. Tennessee Code Annotated, Section 36-5-115(c)(1)(B), is amended by deleting "As an alternative to provision by the clerk of the order and information as required by subdivision (c)(1)(A) by use of a facsimile machine, for" and substituting "For".

SECTION 33. Tennessee Code Annotated, Section 36-5-501(m), is amended by deleting "electronic mail, facsimile transmission" and substituting "electronic transmission".

SECTION 34. Tennessee Code Annotated, Section 36-5-807(b), is amended by deleting "electronic mail, facsimile transmission" and substituting "electronic transmission".

SECTION 35. Tennessee Code Annotated, Section 36-5-907, is amended by deleting subsection (c) and substituting:

(c) The release may be conveyed by electronic transmission.

SECTION 36. Tennessee Code Annotated, Section 36-5-1002(c)(3), is amended by deleting "facsimile transmission or by any other electronic technology" and substituting "electronic transmission".

SECTION 37. Tennessee Code Annotated, Section 38-1-402(b), is amended by deleting "facsimile" and substituting "electronic".

SECTION 38. Tennessee Code Annotated, Section 40-6-109(e)(2)(C), is amended by deleting "Facsimile or electronic" and substituting "Electronic".

SECTION 39. Tennessee Code Annotated, Section 40-27-110(c)(2), is amended by deleting "electronic mail, facsimile or by" and substituting "electronic transmission, or".

SECTION 40. Tennessee Code Annotated, Section 40-28-102(5), is amended by deleting ", facsimile and internet communication" and substituting "or electronic transmissions".

SECTION 41. Tennessee Code Annotated, Section 43-38-103(25), is amended by deleting "by facsimile or".

SECTION 42. Tennessee Code Annotated, Section 43-38-108(b), is amended by deleting "in facsimile" and substituting "by electronic transmission".

SECTION 43. Tennessee Code Annotated, Section 45-1-129, is amended by deleting "electronic communications, including, but not limited to, facsimile transmissions and electronic mail" and substituting "electronic transmissions".

SECTION 44. Tennessee Code Annotated, Section 47-18-2108(e), is amended by deleting "facsimile" and substituting "electronic transmission".

SECTION 45. Tennessee Code Annotated, Section 48-11-308, is amended by deleting "(which may be in facsimile or other electronic format)" and substituting ", which may be an electronic transmission,".

SECTION 46. Tennessee Code Annotated, Section 49-7-2105(a)(1)(C), is amended by deleting " communicating electronically, including a facsimile number, electronic mail address, and personal and business or employer websites" and substituting "electronic transmission".

SECTION 47. Tennessee Code Annotated, Section 50-6-204(d)(4), is amended by deleting "by facsimile or e-mail" wherever it appears and substituting "electronic transmission".

SECTION 48. Tennessee Code Annotated, Section 54-1-505(b), is amended by deleting "email, facsimile" and substituting "electronic transmission".

SECTION 49. Tennessee Code Annotated, Section 62-76-104(b)(2), is amended by deleting ", facsimile transmission, or email" and substituting " or electronic transmission".

SECTION 50. Tennessee Code Annotated, Section 63-1-130(b)(2), is amended by deleting ", facsimile transmission, or email" and substituting "or electronic transmission".

SECTION 51. Tennessee Code Annotated, Section 67-3-704(c), is amended by deleting "by facsimile" and substituting "by electronic transmission".

SECTION 52. Tennessee Code Annotated, Section 67-3-704(c), is amended by deleting "facsimile service" and substituting "internet service".

SECTION 53. Tennessee Code Annotated, Section 67-3-801(d), is amended by deleting "facsimile notice" and substituting "notice by electronic transmission".

SECTION 54. Tennessee Code Annotated, Section 67-3-808(b), is amended by deleting "facsimile" and substituting "electronic transmission".

SECTION 55. Tennessee Code Annotated, Section 67-5-1513(c), is amended by deleting "facsimile" and substituting "electronic".

SECTION 56. Tennessee Code Annotated, Section 67-5-1805(c)(4)(B)(i), is amended by deleting "delivered electronically such as via e-mail or facsimile" and substituting "electronic transmission".

SECTION 57. Tennessee Code Annotated, Section 71-5-117(f), is amended by deleting "facsimile" wherever it appears and substituting "electronic transmission".

SECTION 58. This act takes effect January 1, 2026, the public welfare requiring it.